

Madan Bhandari University of Science and Technology Act, 2022

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Madan Bhandari Science and Technology University Act, 2079

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Amending Act

1. Some Nepal Acts Amendment Act, 2082 2082.04.14

Act Number 16 of the year 2079

An Act Made to Provide for the Madan Bhandari Science and Technology University

Preamble: Whereas, it is desirable to make necessary provisions regarding the establishment and operation of a public character Madan Bhandari Science and Technology University with the objectives of producing competent, high-level technical, scientific, and intellectual personnel required for the country, creating new knowledge and technology, and making existing knowledge and technology available by adapting them to the local context,

The Federal Parliament has enacted this Act. Chapter-1

Preliminary

1. Short Title and Commencement: (1) This Act may be called the "Madan Bhandari Science and Technology University Act, 2079".

(2) This Act shall come into force immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Chairperson" means the Chairperson of the University pursuant to Section 12.

(b) "Faculty Member" means a faculty member pursuant to Section 19.

(c) "Researcher" means a researcher pursuant to Section 19.

(d) "Vice-Chairperson" means the Vice-Chairperson of the University pursuant to clause (b) of Section 6.

(e) "Employee" means an employee of the University pursuant to Section 19.

(f) "Executive Council" means the Executive Council pursuant to Section 11.

(g) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules made under this Act.

(h) "Academic Council" means the Academic Council pursuant to Section 10.

(i) "Ministry" means the Ministry of Education, Science and Technology of the Government of Nepal.

(j) "University" means the Madan Bhandari Science and Technology University established pursuant to

Section 3.

(k) "Science and Technology" means science, engineering, and other technical subjects.

(l) "President" means the President of the Board of Trustees pursuant to sub-section (14) of Section 7.

(m) "Trustee" means a member of the Board of Trustees and the said term also denotes the President.

(n) "Board of Trustees" means the Board of Trustees pursuant to Section 7. Chapter-2

Establishment of the University

3. Establishment of the University: (1) The Madan Bhandari Science and Technology University is established to produce competent human resources capable of competing internationally in the subjects and fields of science and technology and to further contribute to the development of new knowledge and technology.

(2) The University shall be called "Madan Bhandari University of Science and Technology" in English and abbreviated as "MBU".

(3) The University shall be located at a place designated by the Board of Trustees. 4.

6. Office-bearers of the University: The University shall have the following office-bearers:

(a) Chairperson,

(b) Up to five Vice-Chairpersons,

(c) Other office-bearers. Chapter-4

Formation, Functions, Duties, and Powers of the Board of Trustees

7. Formation of the Board of Trustees: (1) There shall be a Board of Trustees as the supreme body of the University.

(2) The Board of Trustees shall be formed as follows:

(a) Member elected from the House of Representatives constituency where the University is located under the first-past-the-post electoral system - Member

(b) Secretary, Ministry of Finance - Member

(c) Secretary, Ministry - Member

(d) One official representative of the University Grants Commission - Member

(e) Two persons, including at least one woman, from among distinguished incumbent or former professors in the field of science and technology - Member

(f) One person from among distinguished incumbent or former professors in subjects other than science and technology - Member

(g) Two persons, including at least one woman, from among distinguished persons with work experience as trustees of world-class universities - Member

(h) One person from among former office-bearers of public institutions related to science and technology

established under prevailing law or distinguished persons with at least fifteen years of experience in the field of science and technology - Member

(i) Two persons from among individuals who have achieved notable success in industries or businesses related to the field of science and technology or who have provided substantial support to the University - Member

(j) Chairperson - Member

(k) Two persons from among individuals who have achieved notable success in their profession or occupation or who have made distinguished contributions to society - Member

(l) Two persons, including at least one woman, from among the alumni of the University - Member

(3) The nomination of Trustees pursuant to clauses (e), (f), (g), (h), (i), (k), and (l) of sub-section (2) shall be made by the Board of Trustees.

(4) The Board of Trustees shall nominate Trustees on the basis of the principle of inclusion.

(5) The term of office of a Trustee nominated pursuant to sub-section (3) shall be four years.

(6) Notwithstanding anything contained in sub-section (5), while determining the term of office of the Trustees nominated for the first time after the commencement of this Act, by lottery, the term of four Trustees shall be two years, of five Trustees shall be three years, and of the remaining five Trustees shall be four years.

(7) While nominating Trustees pursuant to clauses (e), (f), (g), (h), (i), and (k) of sub-section (2) in the Board of Trustees, subject matter expertise shall be taken into consideration.

(8) For the purpose of nominating Trustees pursuant to sub-section (3) for the first time after the commencement of this Act, the Government of Nepal shall form a Recommendation Committee as follows to recommend names:

(a) One person from among former Vice-Chancellors of universities established under prevailing law or former office-bearers of equivalent status - Chairperson

(b) Two persons from among distinguished individuals having work experience as trustees of world-class universities or having made notable contributions in the field of education or business - Member

(9) The procedure related to the meeting of the Recommendation Committee formed pursuant to sub-section (8) and the process to be followed while recommending names for the nomination of Trustees shall be as determined by that Committee itself.

(10) The Recommendation Committee formed pursuant to sub-section (8) shall recommend the names of persons to be nominated to the Government of Nepal within ninety days from the date of commencement of its work.

(11) If the position of a Trustee nominated pursuant to clauses (e), (f), (g), (h), (i), (k), and (l) of sub-section (2) falls vacant for any reason, another person shall be nominated for the remaining period by completing the process under this Section.

(12) The process of nomination pursuant to sub-section (11) shall be initiated six months prior to the expiry of the term of office of the Trustee.

(13) An employee designated by the Board of Trustees shall act as the Secretary of the Board of Trustees.

(14) The Board of Trustees shall select the President from among the Nepali citizen Trustees nominated pursuant to sub-section (3).

(15) The Board of Trustees may remove a Trustee mentioned in clauses (e), (f), (g), (h), (i), (k), and (l) of sub-section (2) from office if such Trustee fails to fulfill his/her official responsibilities, behaves in a manner inconsistent with his/her position, does not perform his/her duties honestly, does any act contrary to the interest of the University, or is convicted of a criminal offense involving moral turpitude or is disqualified by law:

Provided that a reasonable opportunity shall be given to such person to submit a defense before removal.

(16) If a Trustee, without reasonable cause or without prior notice to the President, fails to attend more than three consecutive meetings of the Board of Trustees or more than six meetings during his/her entire term, such Trustee shall automatically be relieved of his/her office.

8. Meeting of the Board of Trustees: (1) A meeting of the Board of Trustees shall be held at least once every three months.

(2) The meeting of the Board of Trustees shall be held on the date, time, and place determined by the President.

(3) At least fifteen days prior to the meeting, the Secretary of the Board of Trustees shall give notice to all Trustees along with the agenda of subjects to be discussed in the meeting.

(4) If more than fifty percent of the Trustees currently holding office in the Board of Trustees are present, the meeting shall be deemed to have constituted a quorum.

(5) The meeting of the Board of Trustees shall be chaired by the President.

(6) The opinion of the majority shall prevail in a meeting of the Board of Trustees, and in case of a tie, the person chairing the meeting shall cast the casting vote.

(7) The decision of the meeting of the Board of Trustees shall be recorded by the Secretary of the Board of Trustees and certified by the person chairing the meeting.

(8) With the approval of the President, Trustees may also participate in the meeting of the Board of Trustees through the use of communication technology.

(9) Other procedures relating to the meeting of the Board of Trustees shall be as determined by that Board itself. 9. Functions, Duties, and Powers of the Board of Trustees: In addition to the functions, duties, and powers mentioned elsewhere in this Act, the functions, duties, and powers of the Board of Trustees shall be as follows:

(a) To approve the academic, scholarly, administrative, and other necessary policies and standards of the University,

(b) To manage or arrange for the management of necessary resources for the University,

(c) To approve short-term and long-term plans, policies, and strategies to develop the University as a world-class university,

- (d) To approve the annual plan, policy, budget, and program of the University,
- (e) To approve rules required for the University,
- (f) To review the quarterly progress report of the University,
- (g) To determine and confer degrees to be awarded by the University,
- (h) To determine the terms of service, salary, and facilities of faculty members, researchers, and employees,
- (i) To take action against other office-bearers who act against the interest of the University or fail to perform satisfactory work,
- (j) To protect and promote the academic values and reputation of the University,
- (k) To make necessary arrangements for the smooth functioning of the University,
- (l) To perform or cause to perform other functions as prescribed. Chapter-5

Formation, Functions, Duties, and Powers of the Academic Council

10.

Formation of the Academic Council: (1) There shall be an Academic Council to function as the body to organize the academic work of the University. (2) The Academic Council shall be formed as follows: (a) Chairperson - Coordinator (b) One person nominated by the Chairperson from among the Vice-Chairpersons - Member (c) Three persons, including at least one woman, nominated by the Chairperson from among the faculty members of the University - Member (d) Two experts, including at least one woman, nominated by the Board of Trustees - Member (3) The Academic Council formed pursuant to sub-section (2) may also include other members as prescribed. (4) The functions, duties, and powers of the Academic Council shall be as follows: (a) To approve the curriculum of the University, (b) To determine the type of examinations to be conducted under the University and to evaluate academic programs, (c) To determine and maintain the educational quality of the University, (d) To determine the qualifications and criteria required for admission to subjects taught and studied at the University, (e) To recommend to the Board of Trustees for degrees to be awarded by the University, (f) To perform other functions as prescribed. Chapter-6 Formation, Functions, Duties, and Powers of the Executive Council 11. Formation of the Executive Council: (1) There shall be an Executive Council to function as the executive body of the University. (2) The Executive Council shall be formed as follows: (a) Chairperson - Member (b) Vice-Chairpersons - Member (c) Three members nominated by the Board of Trustees from among the faculty members of the University on the recommendation of the Chairperson - Member (d) Two members nominated by the Board of Trustees from among the heads of bodies pursuant to clause (d) of Section 5 - Member (3) The functions, duties, and powers of the Executive Council shall be as follows: (a) To prepare policies, annual programs and budget, progress reports, audit reports, and other necessary proposals of the University and submit them to the Board of Trustees for approval, (b) To prepare drafts of rules relating to the University and submit them to the Board of Trustees for approval, (c) To mobilize financial resources required for the University, (d) To submit posts of faculty members, researchers, and employees to the Board of Trustees for approval, (e) To appoint the required faculty members, researchers, and employees as prescribed, (f) To determine tuition and other fees, (g) To periodically evaluate the performance of the University and submit a report thereon to the Board of Trustees, (h) To perform or cause to perform other functions as prescribed.

Chapter-7

Provisions Relating to Office-bearers of the University

12. Chairperson: (1) There shall be one Chairperson in the University to perform functions as the executive head of the University.

(2) The Board of Trustees shall complete the process pursuant to Section 13 and appoint the Chairperson within six months from the date of commencement of this Act.

(3) Until the appointment of the Chairperson pursuant to sub-section (2), the Chairperson of the Madan Bhandari Science and Technology University Infrastructure Preparation Development Committee existing at the time of commencement of this Act shall perform the functions as the Chairperson of the University.

(4) The term of office of the Chairperson shall be four years, and he/she may be appointed for one additional term.

(5) The qualifications, remuneration, facilities, and other terms of service of the Chairperson shall be as prescribed. 13. Appointment Procedure for Chairperson: (1) For the purpose of appointing the Chairperson, the Board of Trustees shall form a Recommendation Committee as follows:

(a) One person from among the Trustees - Coordinator

(b) One person from among senior professors in the field of science and technology - Member

(c) One person from among individuals having work experience as Chairperson or Vice-Chairperson of a world-class university - Member

(2) The Recommendation Committee formed pursuant to sub-section (1) shall publish a public notice inviting applications for the position of Chairperson.

(3) From among the candidates submitting applications pursuant to the notice published under sub-section (2), the Recommendation Committee shall prepare a shortlist of a maximum of six and a minimum of three eligible candidates and invite such candidates for interview and presentation.

(4) Based on the interview and presentation of candidates pursuant to sub-section (3), the Recommendation Committee shall recommend the name of the most qualified candidate to the Board of Trustees for appointment to the position of Chairperson.

(5) If the candidate recommended pursuant to sub-section (4) is not considered suitable, the Board of Trustees may request the Recommendation Committee to recommend the name of another candidate from among the remaining candidates pursuant to sub-section (3), stating the reasons.

(6) Upon such request pursuant to sub-section (5), the Recommendation Committee shall recommend the name of the most qualified other candidate from among the remaining candidates.

(7) Other provisions relating to the appointment procedure for the Chairperson shall be as prescribed. 14.

Functions, Duties, and Powers of the Chairperson: (1) The functions, duties, and powers of the Chairperson shall be as follows: (a) To exercise general control and supervision over all acts and proceedings of the University, (b) To give directives on matters falling within his/her area of authority in the work and proceedings of the University, (c) To implement or cause to implement the decisions and directives of the Board of Trustees, (d) To cause to submit proposals relating to all subjects to be presented before the Board of Trustees, (e) To determine or cause to determine short-term and long-term programs for the development

of the University, (f) To arrange for resources required for the University, (g) To maintain or cause to maintain financial discipline, economy, and transparency in the University, (h) To manage, secure, and protect or cause to manage, secure, and protect the property of the University, (i) To perform or cause to perform other functions as prescribed. (2) The Chairperson shall perform functions other than those stated to be performed by any body or office-bearer in this Act or the rules made under this Act. (3) If the Chairperson performs any function pursuant to sub-section (2), such function shall be ratified by the next meeting of the Board of Trustees. 15. Appointment, Terms of Service, and Facilities of Vice-Chairpersons and Other Office-bearers: (1) Appointment of Vice-Chairpersons and other office-bearers shall be made by the Board of Trustees. (2) The qualifications, terms of service and facilities, and functions, duties, and powers of Vice-Chairpersons and other office-bearers shall be as prescribed. 16.

Removal from Office: (1) One-third of the Trustees currently holding office may submit a written application to the President with evidence stating that the Chairperson has failed to fulfill his/her official responsibilities, behaved in a manner inconsistent with his/her position, failed to perform his/her duties honestly, or done any act contrary to the interest of the University. (2) Upon receipt of an application pursuant to sub-section (1), the Board of Trustees shall form a three-member Investigation Committee from among the Trustees within twenty-one days to investigate such application. (3) The Investigation Committee formed pursuant to sub-section (2) may also take assistance from relevant experts during the investigation. (4) If the Investigation Committee formed pursuant to sub-section (2) finds during the investigation that the Chairperson has failed to fulfill his/her official responsibilities, behaved in a manner inconsistent with his/her position, failed to perform his/her duties honestly, or done any act contrary to the interest of the University, the Committee shall recommend his/her removal within one month from the date of commencement of the investigation. (5) If the work cannot be completed within the period specified pursuant to sub-section (4), the Investigation Committee shall automatically dissolve. (6) Based on the recommendation pursuant to sub-section (4), the Chairperson shall be removed by a two-thirds majority of the Trustees: Provided that before making a decision to remove him/her, the Board of Trustees shall give him/her an opportunity to submit a defense against the allegations made against him/her. (7) From the date of recommendation for removal pursuant to sub-section (4) until the final decision thereon, the Chairperson shall be automatically suspended from his/her office. (8) The Board of Trustees shall make a final decision on the matter within sixty days from the date of receipt of the recommendation pursuant to sub-section (4). (9) In the event of suspension of the Chairperson, arrangements for the work to be performed by him/her shall be as determined by the Board of Trustees. (10) The procedure for removing a Vice-Chairperson or other office-bearer from office shall be as prescribed. Chapter-8 Provisions Relating to Fund, Accounts, and Audit of the University 17.

Fund of the University: (1) The University shall have a separate fund. (2) The fund pursuant to sub-section (1) shall consist of the following amounts: (a) Amounts received from the Government of Nepal, Provincial Government, and Local Level, (b) Amounts of grants received from the University Grants Commission, (c) Amounts received as donations, gifts, charity, or financial assistance from any person or institution, (d) Amounts received as grants or assistance from foreign governments, international organizations, (e) Amounts received as academic and other fees, (f) Amounts received from rights related to intellectual property of the University, (g) Amounts received from the income generation of the University. (3) Prior to receiving amounts pursuant to clause (c) of sub-section (2) from any foreign person and amounts pursuant to clause (d), the University shall obtain approval from the Ministry of Finance, Government of Nepal. (4) The amount in the University Fund shall be deposited by opening an account in a bank designated by the Executive Council from among commercial banks of "A" class licensed under the prevailing law relating to

banks and financial institutions. (5) All expenses of the University shall be borne by the Fund pursuant to sub-section (1) as approved by the Board of Trustees. (6) The operation of the University Fund and account shall be as prescribed. 18. Accounts and Audit: (1) The University shall maintain accounts of its income and expenditure in accordance with the accounting system adopted by the Government of Nepal. (2) The University shall maintain an internal control system as prescribed. (3) The internal audit of the University shall be conducted by an auditor appointed by the Board of Trustees from among auditors registered under the prevailing law. (4) The final audit of the University shall be conducted by the Auditor General. Chapter-9 Miscellaneous 19. Provisions Relating to Faculty Members, Researchers, and Employees: Provisions relating to faculty members, researchers, and employees in the University shall be as prescribed. 20. Certificate, Degree Amended by Some Nepal Acts Amendment Act, 2082.and Granting Recognition: (1) The University shall provide certificates and degrees as prescribed to students, trainees, or researchers achieving higher education from the University. (2) The University may confer honorary degrees to persons who have performed commendable work in the field of research and scholarship. Amended by Some Nepal Acts Amendment Act, 2082.(3) The University may recognize the academic degrees of other universities or educational institutions. (4) Other provisions relating to certificates, degrees Amended by Some Nepal Acts Amendment Act, 2082.and recognition shall be as prescribed. 21.

Free Higher Education and Scholarship: (1) Higher education shall be free for Dalit, persons with disabilities, and economically disadvantaged students who fulfill the criteria prescribed by the University and are enrolled in the University. (2) For the purpose of sub-section (1), the basis, criteria, classification, and other related provisions shall be as prescribed by the Government of Nepal by publishing a notice in the Nepal Gazette. (3) A student may avail the facility pursuant to sub-section (2) only once at each level. (4) Notwithstanding anything contained in any prevailing law, seats as prescribed shall be reserved for Dalit students for admission in technical and vocational higher education. (5) The University shall make arrangements for higher education for the sons and daughters of martyrs, disappeared persons, and persons with disabilities as provided in the prevailing law. (6) A student who has studied in a community school from grade six to grade ten shall receive a scholarship in higher education in accordance with the prevailing law. 22. Not to Grant Affiliation or Approval: The University shall not grant affiliation or approval to any type of teaching institution for conducting study and teaching. 23. Acts and Proceedings Not to Be Invalidated: No act or proceeding of the University done involving any Trustee, office-bearer, or member shall be invalidated only by reason of the vacancy in the position of such Trustee, office-bearer, or member or defect in the appointment or nomination of such Trustee, office-bearer, or member. 24. Annual Report: (1) The Board of Trustees shall submit an annual report of its activities during the year to the University Grants Commission within three months from the date of expiry of each fiscal year. (2) Other subjects to be included in the report pursuant to sub-section (1) shall be as prescribed. (3) After receiving the report pursuant to sub-section (1), the University Grants Commission shall submit the University's report, along with an analytical statement based on the University's achievements compared to the University's targets as per the agreement made between the University and the University Grants Commission during the determination of grants, to the Ministry. 25. Prior Approval Required: The University shall obtain the prior approval of the Ministry of Finance, Government of Nepal, through the Ministry before approving any post or increasing remuneration or service facilities of any office-bearer, faculty member, researcher, or employee that imposes financial liability on the Government of Nepal. 26.

May Collaborate with Private Sector: The University may collaborate with the private sector for purposes including mobilizing financial resources for the University. 27. Formation of Committee: (1) The University may form committees as required. (2) The functions, duties, and powers of a committee shall be as specified

at the time of forming such committee. 28. May Inspect, Inquire, and Give Directives: (1) If the work or progress of the University does not appear satisfactory on the basis of the external evaluation report and annual report, the Government of Nepal may form an Inspection and Inquiry Committee as follows to inspect and inquire into the work of the University: (a) One person from among individuals who have made significant contributions in the field of science and technology or management - Chairperson (b) One person from among experts having work experience as a member of the Board of Trustees of a world-class university or individuals who have made significant contributions in the field of economics - Member (c) One person from among individuals who have made significant contributions to society - Member (2) If the Committee formed pursuant to sub-section (1) submits a report with suggestions stating that the work of the University does not appear satisfactory upon inspection and inquiry, the Government of Nepal may give necessary directives to the Board of Trustees to implement the suggestions mentioned in the report. (3) It shall be the duty of the Board of Trustees to implement the directives given pursuant to sub-section (2). 29. Intellectual Property Rights: (1) The intellectual property rights acquired through invention, production, or any other basis made by the University shall be secured in the University in accordance with the prevailing law. (2) The University may provide such services or facilities as prescribed to the concerned faculty member or researcher in consideration of the use of the intellectual property pursuant to sub-section (1). 30. May Appoint or Nominate Foreign Citizens or Non-Resident Nepali Citizens: Foreign citizens or non-resident Nepali citizens who can make significant contributions to the University may be appointed or nominated to work as Trustees, members of recommendation committee of the Board of Trustees, Chairperson, Vice-Chairperson, Academic Council, designated office-bearers, faculty members, or researchers of the University. 31.

Not to Participate in Case of Conflict of Interest: If an office-bearer nominated or appointed under this Act finds that his/her interest conflicts with the interest or concern of the University, such office-bearer shall not participate in the work, proceedings, or decision-making process of the University. 32. External Evaluation to be Conducted: (1) The Board of Trustees shall cause an external evaluation to be conducted every three years on matters including the activities, utilization of means and resources, and achievements of the University, and prepare a report thereof, as prescribed. (2) The evaluation report pursuant to sub-section (1) shall be submitted by the Board of Trustees to the Government of Nepal through the Ministry within six months from the date of expiry of the three-year period. (3) The Government of Nepal shall make the evaluation report received pursuant to sub-section (2) public. 33. Delegation of Authority: (1) The Board of Trustees may, as required, delegate some of the powers vested in it under this Act or the rules made under this Act to the Academic Council or the Executive Council on the recommendation of the Chairperson. (2) The Academic Council may, as required, delegate some of the powers vested in it under this Act or the rules made under this Act to a designated body or committee. (3) The Executive Council may, as required, delegate some of the powers vested in it under this Act or the rules made under this Act to any office-bearer or committee of the University. (4) Any office-bearer of the University may, as required, delegate some of the powers vested in him/her under this Act or the rules made under this Act to any subordinate office-bearer. 34. Contact with Government of Nepal: The University shall contact the Government of Nepal through the Ministry. 35. Dissolution of the University: (1) If the University cannot be operated for any reason, the Government of Nepal may dissolve the University on the recommendation of the Board of Trustees. (2) Upon dissolution of the University, the assets and liabilities of such University shall devolve upon the Government of Nepal. 36. Measurement of Act Implementation: The Ministry shall measure the implementation of this Act within one year after the completion of five years from the commencement of this Act and thereafter within one year after every five years, and shall submit a report thereof to the relevant committee of both Houses of the Federal Parliament. 37. Power to Make Rules: The University may make necessary rules for the

implementation of this Act.